

25NNCV01521 25NNCV01521

County: los-angeles

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Case Number: 25NNCV01521 Hearing Date: August 21, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Strike Answer

Hearing Date: 8/21/26

CASE NO.: 25NNCV01521

CASE NAME: Simounian v. Gevorgyan

Moving Party: Plaintiff Simon Simounian

Responding Party: Defendant Arayik Gevorgyan

Notice: Sufficient

Ruling:

GRANT

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

On March 6, 2025, Plaintiff Simon Simounian (Plaintiff) filed this action against Defendant Arayik Gevorgyan (Defendant) arising out of a motor vehicle accident which occurred on October 29, 2023.

On July 7, 2025, the clerk entered default against Defendant.

On September 10, 2025, the Court set an Order to Show Cause (OSC) re Failure to Proceed with Default Judgment for November 19, 2025. Plaintiff was ordered to submit either a default judgment package or a declaration at least five calendar days before the hearing, and the Court warned that failure to do so could result in dismissal. On November 19, 2025, Plaintiff did not file a default judgment package, did not file a declaration, and did not appear at the OSC hearing. The Court therefore dismissed the action.

On March 27, 2026, the Court granted Plaintiff's motion to vacate dismissal due to counsel's inadvertent clerical error.

On March 30, 2026, Defendant filed an Answer to the original Complaint.

On June 16, 2026, Plaintiff filed the instant motion seeking to strike Defendant's amended answer on the grounds that default has been entered, and Defendant is prohibited from making affirmative steps in litigation. On August 10, 2026, Defendant filed an opposition.

No reply has been filed as on August 17, 2026.

LEGAL

STANDARD

The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437(a).) Where a paragraph contains multiple factual allegations or distinct propositions, a responding party may not simply admit or deny the paragraph as a whole if doing so would obscure which parts are true and which are disputed. Instead, the party must specifically admit or deny the separate branches of the allegation. If the paragraph embraces several clauses or propositions, each material subpart must be addressed separately and disjunctively, or the denial is evasive and insufficient. (*More v. Del Valle* (1865) 28 Cal. 170, 172.)

“Before filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike.” (Code Civ. Proc., § 435.5(a).) “The parties shall meet and confer at least 5 days before the date a motion to strike must be filed.” (Code Civ. Proc., § 435.5(a)(2).)

DISCUSSION

Plaintiff argues

that Defendant’s answer must be stricken because default was entered by the court clerk, immediately terminating Defendant’s right to participate in litigation. (Mot., p. 4.) Plaintiff argues that Defendant remains in default and must take steps to set aside the default before filing an Answer. (Mot., p. 5.)

In opposition,

Defendant argues that striking this answer would just cause Defendant to seek the same relief due to its mistaken reliance on the Court’s prior dismissal, accordingly Defendant argues this motion is a waste of the Court’s time. (Opp., p. 1.) Further, Defendant argues that the motion is untimely, the underlying motion to vacate dismissal was untimely, and Plaintiff has failed to meet and confer prior to filing this motion to strike. (Ibid.)

Meet and Confer

Here, Plaintiff

makes no reference to meet and confer efforts, rather Plaintiff mentions orally moving to strike Defendant's answer and being instructed to file a noticed motion. (Zargaryan Decl., ¶ 15.) Nonetheless, "determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike." (Code Civ. Proc., § 435.5(a)(4).) The parties are admonished to comply with meet and confer requirements in the future.

Motion to Strike

Here,
in the March 27, 2026, Order vacating dismissal, the Court described Plaintiff's failure to submit a default judgment packet due to mistake or inadvertence but did not set aside entry of default on Defendant. (See 3/27/26 Minute Order, p. 3.) "The entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered." (Devlin v. Kearny Mesa Amc/Jeep/Renault (1984) 155 Cal.App.3d 381, 385.) Accordingly, Defendant is prohibited from making the affirmative step of filing a responsive pleading until default is set aside. (Parish v. Peters (1991) 1 Cal.App.4th 202, 209, n.8.) To date Defendant has not successfully moved to set aside entry of default.

Accordingly, the
motion to strike Defendant's answer is GRANTED.

CONCLUSION AND ORDER

Plaintiff Simon
Simounian's motion to strike Defendant's Answer is GRANTED.

MOVING PARTY

shall
provide notice and provide a proposed order consistent with this ruling within
15 days from this date.